UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NEWANFORBI, Plaintiff, v. FEDERAL EXPRESS CORPORATION, Defendant.	No. 2:26-cv-2881-DAD-SCR PRETRIAL SCHEDULING ORDER

On October 8, 2026 at 11:00 A.M., this case was before the undersigned via Zoom for a status and pretrial scheduling conference. *See* ECF No. 11. After hearing from the parties, and in consideration of the parties' individual status reports (ECF Nos. 9-10), the Court enters the following scheduling order:

SERVICE OF PROCESS

Defendant has been served and filed an answer. ECF No. 4.

JOINDER OF PARTIES/AMENDMENTS

Defendant does not anticipate joinder of additional parties. ECF No. 10 at 2. As indicated at the status hearing, Plaintiff does not anticipate filing a motion seeking leave to add additional parties. Any motion to amend pleadings or for joinder of parties shall be filed on or before **January 15, 2027.**

JURISDICTION/VENUE

Defendant removed this action from the San Joaquin County Superior Court based on diversity jurisdiction. ECF No. 1 at 2. Plaintiff does not dispute that jurisdiction and venue are proper, and does not intend to seek remand. ECF No. 9 at 4.

DISCOVERY

The parties agreed to exchange initial disclosures under Rule 26 by **October 8, 2026**, the day of the scheduling conference. ECF Nos. 9 at 5, 10 at 3.

All non-expert discovery shall be completed by **June 25, 2027.** The word "completed" means that all discovery shall have been conducted so that all depositions have been taken and any disputes relative to discovery shall have been resolved by appropriate order if necessary and, where discovery has been ordered, the order has been complied with. Motions to compel non-expert discovery must be noticed on the undersigned's calendar in accordance with the Local Rules and must be heard not later than **June 3, 2027**.

Neither party proposes any modifications to discovery procedures or limitations for this action. ECF Nos. 9 at 9, 10 at 3-4.[1] The parties are reminded to review the "Civil Standing Order" posted on Judge Riordan's webpage. Judge Riordan encourages early resolution of discovery disputes outside the formal Local Rule 251 procedures, when appropriate. Upon order of the court, or by agreement of the parties, Judge Riordan will resolve minor or discrete discovery disputes by conducting an informal telephonic conference. Additional information is available on the court's website at www.caed.uscourts.gov

EXPERT DISCLOSURE

The parties shall disclose experts and produce reports in accordance with Federal Rule of Civil Procedure 26(a)(2) as follows: both parties' initial expert disclosures on or before **July 30, 2027**; rebuttal expert disclosures on or before **August 27, 2027**. Expert discovery shall be completed by **September 24, 2027**.

[1] Plaintiff asks for reassurance that Defendant has enacted a "litigation hold" to prevent the destruction of certain types of evidence. ECF No. 9 at 6-7. The parties are reminded of their obligation to preserve any materials that could be relevant to this action.

MOTION HEARING SCHEDULES

All motions, except motions for continuances, temporary restraining orders, or other emergency relief, or as to discovery, shall be filed by **September 30, 2027**.

Counsel for both parties are cautioned to refer to the Local Rules and Judge Riordan's Civil Standing Order regarding the requirements for noticing such motions on the court's regularly scheduled law and motion calendar. Available hearing dates are available on Judge Riordan's website.

All purely legal issues are to be resolved by timely pretrial motion. The parties should keep in mind that the purpose of law and motion is to narrow and refine the legal issues raised by the case, and to dispose of by pretrial motion those issues that are susceptible to resolution without trial. To accomplish that purpose, the parties need to identify and fully research the issues presented by the case, and then examine those issues in light of the evidence gleaned through discovery. If it appears after examining the legal issues and facts that an issue can be resolved by pretrial motion, the parties are to file the appropriate motion by the law and motion cutoff set forth above. The parties are cautioned that failure to raise a dispositive legal issue that could have been tendered to the court by proper pretrial motion prior to the dispositive motion cut-off date may constitute waiver of such issue.

The parties are reminded that motions in limine are procedural devices designed to address the admissibility of evidence. Counsel are cautioned that the court will look with disfavor upon substantive motions presented in the guise of motions in limine at the time of trial.

FINAL PRETRIAL CONFERENCE AND TRIAL SETTING

The Court will set trial dates after the resolution of dispositive motions or after the deadline for filing dispositive motions has passed.

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SETTLEMENT CONFERENCE/MAGISTRATE JUDGE AS SETTLEMENT JUDGE

The parties shall meet and confer as to requested dates for a settlement conference in 2027 and then contact Shelly Her at Sher@caed.uscourts.gov about the setting of the conference before a different magistrate judge.

IT IS SO ORDERED.

DATED: October 8, 2026

SEAN C. RIORDAN
UNITED STATES MAGISTRATE JUDGE